

26VECV02151 26VECV02151

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 26VECV02151 Hearing Date: July 28, 2026 Dept: B

Tentative Ruling

Schrage v. Fierro, Case no. 26VECV02151

Hearing date July 28, 2026

Defendants'

Motion for Judgment on the Pleadings - CONTINUED

Plaintiff

Schrage sues defendants Fierro for unlawful detainer. Defendants move for judgment on the pleadings, alleging defective 3-day notice. The court heard arguments and continued the hearing. See 7/8/26 Min. Order.

The

court previously granted summary judgment for defendants in Schrage v. Fierro, Case no. 25VECV05223, as the court found plaintiff's 3-day notice failed to include either the date served or expiration date. See 3/26/26 Min. Order in Case no. 25VECV05223. The 3-day notice in this matter contains the date served, 3/29/26 (See Compl., exh. 2), but does not state an expiration date. Id. The 3-day notice states the notice period expires 3 court days after service. Id.

Plaintiff

argues controlling law, Eshagian v. Cepeda (2025) 112 Cal.App.5th 433, 457, requires a 3-day notice to contain the date of service, number of days until expiration of the notice period and what days are excluded from calculations. Plaintiff argues the 3-day notice at issue is distinguishable from

that in Eshagian, supra, which did not identify the date of service, the event that commenced the statutory period and did not state that weekends and judicial holidays were excluded. Id. at 459.

Per

Eshagian, supra, a notice is defective where it fails to provide information without which “an ordinary tenant would not have reasonably understood the deadline... to pay the rent due to avoid forfeiture of the premises.” Id. at 459. While the 3-day notice here did not state the date of expiration, no such requirement is stated in Eshagian, supra, or Code Civ. Proc. §1161(2). The 3-day notice contained the date of service, the length of the notice period and noted all days excluded from calculations. See Compl., exh. 2. This is sufficient to give an ordinary tenant notice. The 3-day notice is not defective for failing to state the expiration date.

Defendants

separately argue the 3-day notice was served prior to entry of judgment in the prior UD matter, constituting invalid service. Judgment was entered in the prior action on 3/30/26; the 3-day notice at issue was served on 3/29/26. Defendants argue two separate actions cannot be pending between the same parties which arise from the same cause of action. See Code Civ. Proc. §430.10.

The

complaint in this action was filed on 4/10/26, after judgment was entered in the prior action. Defendants provide no authority that posting a 3-day notice constitutes commencement of an action. An action is commenced via filing a complaint or petition; service of a notice to pay rent or quit does not constitute initiation of a lawsuit. The 3-day notice is neither defective nor prematurely served. DENIED.